

Subject: Urgent Escalation – Non-Response and Systemic Breach of FPR Part 3A / Equality Act 2010 (CA-2024-001342)

Date: Tuesday, October 28, 2025 at 7:24:23 AM Greenwich Mean Time

From: Nadia <nadia@rosekross.com>

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Priority: High

Attachments: Urgent_Escalation_NadiaZahmoul_28Oct2025.pdf, Pre-Action Protocol Letter + Annex A .pdf, Follow-Up Pre-Action Letter – Unlawful Revocation of Participation Measures (21 Oct 2025).pdf, CA-2024-001342_NZahmoul_Application_and_Bundle_20Oct2025 with pagination.pdf, Zahmoul_Nadia_Letter_to_AutismAct2009Committee_24Oct2025.pdf

Please treat this as a formal notice of non-response and escalation under the Pre-Action Protocol.

Dear Sir / Madam,

I write to escalate formally the matters raised in my **Pre-Action Protocol Letter** (20 October 2025) and **Follow-Up Letter** (21 October 2025) regarding serious procedural and equality breaches by the Ministry of Justice and HMCTS. To date, I have received no acknowledgment or response, contrary to the Pre-Action Protocol for Judicial Review and the duty of good administration.

This escalation concerns the unlawful revocation of **Part 3A** participation measures following the February 2024 trial, and the **suppression of autism- and PTSD-related evidence** within the High Court's judgment and subsequent costs order. The Court's reasoning **mischaracterised disability-related behaviour as misconduct** ("obsessive" and "disruptive") despite extensive trial references to participation measures and vulnerabilities.

These findings are uncorroborated by the oral evidence and amount to **procedural bias and discrimination** under the **Equality Act 2010, FPR Part 3A, and Articles 6 & 14 ECHR**.

The Care Quality Commission confirmed on 24 October 2025 (Ref CAS-1128363-L9T8X4) that it has no jurisdiction over MoJ or HMCTS, evidencing the complete absence of an independent enforcement mechanism when the justice system fails to comply with disability duties.

I therefore request, within **7 days**:

- Acknowledgment and full written response to my 20 and 21 October letters;
- Formal admission of failure to maintain participation measures post-trial and a written apology;
- Confirmation of a review or audit process ensuring compliance with FPR Part 3A beyond the trial stage;
- Support for striking paragraphs 64 and 10(xi) from the judgments and reinstating

proper participation measures; and

- Engagement with the Autism Act 2009 Committee to establish an independent enforcement mechanism for vulnerable court users.

A copy of my letter to the **Autism Act 2009 Committee** (24 October 2025) is also enclosed, as it sets out the broader systemic implications of these failures and the enforcement gap confirmed by the Minister of State for Care.

Please treat this as a formal escalation notice. Copies are provided to the Court of Appeal, Judicial Office, and Autism Act Committee for oversight and accountability.

Yours faithfully,

Nadia Zahmoul

Email: nadia@rosekross.com

Case No: CA-2024-001342 / BV20D01752

Attachments

Urgent Escalation Letter (28 Oct 2025)

Pre-Action Protocol Letter + Annex A (20 Oct 2025)

Follow-Up Pre-Action Letter - Unlawful Revocation of Participation Measures (21 Oct 2025)

Application & Bundle (CA-2024-001342)

Zahmoul_Nadia_Letter_to_AutismAct2009Committee_24Oct2025.pdf